

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Date Purchased:

-----X
OMAR SANTIAGO,

SUMMONS

Plaintiff,

Index No.:

-against-

Plaintiff designates
BRONX County as
the place of trial.

THE CITY OF NEW YORK, POLICE OFFICER RICHARD
ORTIZ (TAX ID 953206000) POLICE OFFICER
"JOHN DOE" 1 and POLICE OFFICER "JOHN DOE" 2,
the true names are unknown to the Plaintiff.
Defendants.

The basis of venue is:
Location of Occurrence
BRONX

-----X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY

May 14, 2018

Yours, etc.



Jonathan E. Roberts, Esq.
TALKIN, MUCCIGROSSO & ROBERTS, LLP
Attorneys for Plaintiff
40 Exchange Place, 18th Floor
New York, New York 10005
212-482-0007

Via Personal Service:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer Richard Ortiz
52 Police Precinct
3016 Webster Avenue
Bronx, New York 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Date Purchased:

-----X
OMAR SANTIAGO,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.:

THE CITY OF NEW YORK, POLICE OFFICER RICHARD
ORTIZ (TAX ID 953206000) POLICE OFFICER
"JOHN DOE" 1 and POLICE OFFICER "JOHN DOE" 2,
the true names are unknown to the Plaintiff.

Defendants.

-----X

Plaintiff, OMAR SANTIAGO, by his attorneys, TALKIN, MUCCIGROSSO &
ROBERTS, LLP, complaining of the Defendants, THE CITY OF NEW YORK, POLICE
OFFICER RICHARD ORTIZ (TAX ID 953206000) POLICE OFFICER "JOHN DOE" 1 and
POLICE OFFICER "JOHN DOE" 2 respectfully alleges the following upon information and
belief:

NOTICE OF CLAIM

1. That on November 29, 2017 and within the time prescribed by law, a sworn Notice of
Claim stating, among other things, the time, when and place where the injuries and damages
were sustained, together with the Plaintiff's demands for adjustment thereof were duly served on
Plaintiff's behalf on the Comptroller for the City of New York. Over 30 days have elapsed since
the filing of the Notice of Claim, and this matter has not been settled or otherwise disposed of.

2. A 50-h hearing was held on March 9, 2018.

PARTIES

3. Plaintiff, OMAR SANTIAGO, was and still is a resident of the County of Bronx in the

City and State of New York.

4. The City of New York (or “City”) is a municipal corporation organized under the laws of the State of New York. At all times relevant, Defendant City, acting through the New York Police Department (or “NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline, retention and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that NYPD personnel obey the laws of the United States and the State of New York.

5. On information and belief, the police officer defendants were, at all times here relevant, police officers of the NYPD, and as such were acting in the capacity of agents, servants and employees of the City of New York. On information and belief, Defendant police officers were involved in the illegal arrest of Plaintiff and/or failed to intervene in the actions of their fellow officers. Defendant police officers are sued in their individual and official capacities.

6. At all times here mentioned Defendant NYPD was acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

7. The claim arises from an incident that occurred on August 31, 2017 in which Officers of the NYPD, acting under color of state law, intentionally and willfully falsely arrested and imprisoned Plaintiff, denied Plaintiff due process and maliciously prosecuted Plaintiff.

8. Plaintiff seeks monetary damages (special, compensatory, and punitive) against Defendants and such other and further relief as the Court deems just and proper.

FACTUAL ALLEGATIONS

9. On August 31,2017, at approximately 11:15 a.m. Plaintiff, OMAR SANTIAGO was lawfully present at the premises known as the 52nd Police Precinct located at 3016 Webster Avenue, in Bronx County in the City and State of New York. Plaintiff was handcuffed and unlawfully arrested and/or detained by several New York City Police Officers, including, but not limited to Police officer Richard Ortiz (Tax ID 953206000).
10. The Plaintiff was charged with violation of Penal Code 240.30(2) and was detained and/or held for approximately fourteen hours and then released from the 52nd Precinct .
11. The District attorney declined to prosecute the criminal case and issued a 343D.
12. At all times during the events described above, the defendant police officers were engaged in a joint venture and formed an agreement to violate Plaintiff's rights. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. They failed to intervene in the obviously illegal actions of their fellow officers against Plaintiff.
13. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of psychological and emotional distress, anguish, anxiety, fear humiliation, loss of freedom and damage to his reputation and standing within his community.
14. During all of the events above described, Defendants acted maliciously and with intent to injure Plaintiff.

DAMAGES

15. As a direct and proximate result of the acts of Defendants, Plaintiff suffered the following

/

injuries and damages:

- a. Violation of his rights pursuant to the Fourth and Fourteenth Amendments to the United States Constitution;
- b. Loss of liberty;
- c. Psychological and emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety.

FIRST CAUSE OF ACTION

(U.S.C. § 1983)

- 16. The above paragraphs are here incorporated by reference.
- 17. Defendants have deprived Plaintiff of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to Plaintiff under 42 USC § 1983.
- 18. Defendants, under color of state law, subjected the Plaintiff to the foregoing acts and omissions without due process of law and in violation of 42 U.S.C. § 1983, thereby depriving Plaintiff of his rights, privileges and immunities secured by the Fourth and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights:
 - a. Freedom from unreasonable searches and seizures of his person;
 - b. Freedom from arrest without probable cause;
 - c. Freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification, and of which Plaintiff was aware and did not consent;
 - d. Freedom from deprivation of liberty without due process of law;

e. Freedom from excessive force.

19. Plaintiff has been damaged as a result of Defendants' wrongful acts.

SECOND CAUSE OF ACTION
(FAILURE TO INTERVENE)

20. The above paragraphs are here incorporated by reference.

21. Members of the NYPD have an affirmative duty to assess the constitutionality of interactions between their fellow members of service and civilians and to intervene where they observe another member of the Police Department or other law enforcement agency falsely arresting a civilian.

22. Defendant, Police Officer, Richard Ortiz, violated Plaintiff's rights by failing to intervene in the unlawful arrest of Plaintiff, which resulted in the injuries and damages set forth above.

23. Defendant Police Officer John Doe #1 violated Plaintiff's rights by failing to intervene in the unlawful arrest of Plaintiff which resulted in the injuries and damages set forth above.

24. Defendant Police Officer John Doe #2 violated Plaintiff's rights by failing to intervene in the unlawful arrest of Plaintiff, which resulted in the injuries and damages set forth above.

THIRD CAUSE OF ACTION

(MUNICIPAL AND SUPERVISORY LIABILITY – "MONELL")

25. The above paragraphs are here incorporated by reference.

26. The City is liable for the damages suffered by Plaintiff as a result of the conduct of their employees, agents, and servants, in that, after learning of their employees' violation of Plaintiff's constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the

unlawful condition or event. The City has been alerted to the intolerably frequent illegal arrests by its police officers, but has nevertheless exhibited deliberate indifference to such illegal arrests; that deliberate indifference caused the violation of Plaintiff's constitutional rights in this case.

27. The City's continuing failure to deter police misconduct has led to ever increasing numbers of lawsuits for repeat routine misconduct by the same officers, same units and same precincts. In 2012, New York City paid out over \$131 million for the fiscal year, compared to 2011, when it paid out more than \$166 million, and 2010, when it paid \$128 million.¹ In the first ten years of the 21st century, the City of New York has paid nearly a billion dollars on lawsuits brought against the NYPD.² More than 40% of those settlements in 2011 stem from excessive force and false arrest.

28. The widely held assumption is that civil rights lawsuits deter police misconduct. "The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails. Wyatt v. Cole, 504 U.S. 158, 161, (1992) citing Carey v. Piphus, 435 U.S. 247, 254-257, (1978). "As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts." See Hudson v. Michigan 547 U.S. 586, 598 (2006) citing Correctional Services Corp. v. Malesko, 534 U.S. 61, 70 (2001) and Nix v. Williams, 467 U.S. 431, 446, (1984). "It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual

¹ Mayor Michael Bloomberg's preliminary Management Report for FY 2013, available at http://www.nyc.gov/html/ops/downloads/pdf/pmmr2013/2013_pmmr.pdf, see page 6, last visited on June 25, 2013.

² "NYPD Has Paid Out Nearly \$1 Billion in Claims Over Past Decade," by Associated Press Writers Colleen Long and Jennifer Peltz, <http://www.law.com/jsp/article.jsp?id=1202473432953>, October 15,

official faces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21, (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

29. However, the City of New York has insulated NYPD officers from accountability for its civil rights lawsuits by indemnifying officers who violate the constitutional rights of citizens, and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, the NYPD or its officers. Civil rights lawsuits against police officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even after multiple lawsuits. In 1999, former Comptroller Alan Hevesi reported that there was a “a total disconnect” between the settlements of even substantial civil claims and police department action against officers. This “total disconnect” between officers’ liability and NYPD discipline, results in a system where the City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests or officers who have incurred large sums of civil rights liability. The City Council, Government Operations Committee, despite being alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units and precincts are disproportionately responsible for New York City civil rights lawsuits.

30. The City is liable for the damages suffered by Plaintiffs in that, after learning of their employees’ violation of Plaintiffs’ constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed

2010 last visited on June 25, 2013.

such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event.

31. The aforesaid event underlying Plaintiffs' factual allegations was not an isolated incident.

The City has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their police officers unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City has allowed policies and practices that allow the aforementioned to persist.

32. The City has been alerted to the regular use of false arrests by its police officers, through lawsuits, civilian complaints, notices of claim, City Council hearings, newspaper reports, and cases resulting in declined prosecutions and dismissals, but has nevertheless exhibited deliberate indifference to such false arrests; that deliberate indifference caused the violation of Plaintiff's constitutional rights in this case.

33. Nevertheless, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City's deliberate indifference towards the contents of civil rights litigation, towards individual officers repeatedly named in lawsuits, towards incidents repeatedly occurring in the same precinct, towards patterns of misconduct that arise in civil rights litigation has caused the constitutional violations against Plaintiff.

34. Police officers have repeatedly told New York City news investigations that their supervisors pressure them into reaching "performance goals" or quotas, resulting in the

violation of innocent New Yorker's civil rights.³ Former Deputy Commissioner Paul J. Browne has repeatedly admitted that NYPD commanders are permitted to set "productivity goals."⁴ NYPD Officer Adil Polanco has asserted that his command, the 41st precinct in the Bronx, regularly requires officers to make at least "one arrest and twenty summonses" per month.⁵ The New York City Office of Collective Bargaining concluded that officers in Brooklyn's 75th Precinct were required to issue four parking tickets, three moving violation citations, three "quality-of-life" summonses, make one arrest and two stop-and-frisks each month.⁶ Arbitrator Bonnie Siber Weinstock ruled that the NYPD maintained an illegal quota system, and she ordered the city to cease and desist from the practice.⁷

35. Kieran Creighton, commander of the NYPD Housing Police Service Area 8 in the north Bronx, was investigated in 2007 for ordering officers to make a certain number of arrests each month. According to the New York Daily News:

"The incident allegedly occurred in the spring when Creighton ordered at least eight members of an undercover anti-crime team to a meeting in Pelham Bay Park to berate them about an alleged lack of arrests, sources said.

'You can't make the nine collars a month, then we'll all have to go our separate ways,'

Creighton told the officers, according to an internal complaint obtained by The News.

Anything less than nine arrests would be a 'personal slap in the face,' Creighton allegedly said.

³ See WABC's Jim Hoffer's three installments (March 3, May 23 and May 25, 2010) on NYPD quotas available at <http://abclocal.go.com/wabc/story?section=news/investigators&id=7461355> last visited on June 25, 2013.

⁴ Jim Hoffer, *NYPD Officer Claims Pressure to Make Arrests*, WABC-TV Eyewitness News, March 2, 2010. Available at <http://abc7ny.com/archive/7305356/>. ("Police Officers like others who receive compensation are provided productivity goals and they are expected to work.")

⁵ See *id.*

⁶ *New York City Ticket Quota Confirmed, Denied*. TheNewspaper.com, Jan. 21, 2006, available at <http://www.thenewspaper.com/news/09/914.asp>.

Creighton then told the cops to ‘finagle’ the times of arrests so any overtime was paid for by a federal funded anti-drug program, the complaint alleges.

Unbeknownst to Creighton, one officer had his NYPD radio switched on – so that captain’s 10 to 12-minute speech was broadcast to Bronx precincts in Morrisania and Shuylerville and taped by a 911 dispatcher.”⁸

36. The Civilian Complaint Review Board (“the CCRB”), a City police oversight agency, often finds complainants lack credibility based in part on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not substantiating the most serious charges brought to the CCRB. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers’ misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD, once finding misconduct by an officer.

37. The NYPD, once receiving a substantiated complaint by the CCRB, fails to adequately discipline officers for misconduct. In 2002, the percentage of officers who were the subject of substantiated CCRB complaints who received no discipline was 47%; in 2007, it was 75%.⁹ The

⁷ See *id.*

⁸ Alison Gendar, *NYPD Captain Allegedly Caught in Arrest Quota Fixing*. The New York Daily News, Nov. 14, 20017. Available at <http://www.nydailynews.com/news/crime/nypd-captain-allegedly-caught-arrest-quota-fixing-article-1.256006>.

⁹ The NYCLU issued a report in September 2007 on the CCRB detailing the failure of the NYPD to follow up on substantiated CCRB complaints, among other failures by the City and the CCRB to address police misconduct: “Mission Failure: Civilian Review of Policing in New York City, 1994-2006”, available at: http://www.nyclu.org/files/ccrb_failing_report_090507.pdf, last visited

NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinarily rare event that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which the police commissioner has done on many occasions. This entire procedure provides so many opportunities for meritorious complaints of false arrests to be dismissed or disregarded that there is no credible, effective oversight of police department employees, despite an apparently elaborate set of oversight mechanisms. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

38. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors and in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. "Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications,

on June 25, 2013.

serious training to avoid constitutional violations, and strong disciplinary action within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.” See Colon v. City of New York, et al, 2009 WL 4263362 (E.D.N.Y.)(Weinstein, J.).

39. The City is aware that all of the aforementioned has resulted in violations of citizens’ constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate Plaintiffs’ civil rights, without fear of reprisal.

40. Plaintiff has been damaged as a result of the deliberate indifference of the Defendant City.

FOURTH CAUSE OF ACTION

(MALICIOUS PROSECUTION)

- 41. The above paragraphs are here incorporated by reference.
- 42. Defendants caused a criminal proceeding to be initiated against Plaintiff.
- 43. The criminal proceeding terminated in Plaintiff’s favor.
- 44. Defendants lacked probable cause to initiate the criminal proceeding.
- 45. Defendants acted willfully, recklessly and with malice toward Plaintiff.
- 46. As a result of Defendants’ conduct, Plaintiff was damaged.

FIFTH CAUSE OF ACTION

(RESPONDEAT SUPERIOR)

- 47. The above paragraphs are here incorporated by reference.
- 48. Defendants’ intentional tortious acts were undertaken within the scope of their employment by Defendant City of New York and in furtherance of the Defendant City of New

York's interest.

49. As a result of Defendants' tortious conduct in the course of their employment and in furtherance of the business of Defendant City of New York, Plaintiff was damaged.

WHEREFORE, Plaintiff demands judgment against the Defendants, jointly and severally, as follows:

- A. In favor of Plaintiff in an amount to be determined by a jury for each of Plaintiff's causes of action;
- B. Awarding Plaintiff punitive damages in an amount to be determined by a jury;
- C. Awarding Plaintiff reasonable attorneys' fees, costs and disbursements of this action; and
- D. Granting such other and further relief as this Court deems just and proper.

Dated: New York, New York
May 14, 2018

Yours, etc.



TALKIN, MUCCIGROSSO & ROBERTS,
L.L.P.
Attorneys for Plaintiff
40 Exchange Place, 18th Floor
New York, New York 10005
212-482-0007

Via Personal Service:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer Richard Ortiz
52 Police Precinct
3016 Webster Avenue
Bronx, New York 10467

ATTORNEY'S VERIFICATION

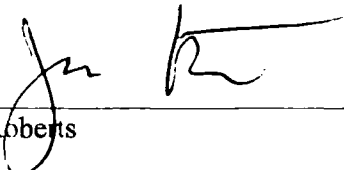
Jonathan E. Roberts, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at TALKIN, MUCCIGROSSO & ROBERTS, LLP, attorneys of record for Plaintiff, Omar Santiago .

I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff does not presently reside in the county wherein I maintain my offices.

DATED: New York, New York
May 14, 2018



Jonathan E. Roberts

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index #:

OMAR SANTIAGO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER RICHARD
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the true names are unknown to the Plaintiff.
Defendants.

SUMMONS AND VERIFIED COMPLAINT
TALKIN, MUCCIGROSSO & ROBERTS, L.L.P.
Attorneys for Plaintiff,
40 Exchange Place, 18th Floor
New York, New York 10005
(212) 482-0007

To:
Attorney(s) for
Service of a copy of the within is hereby admitted.

Dated:
Attorney(s) for

PLEASE TAKE NOTICE
NOTICE OF
ENTRY



That the within is a (certified) true copy of a
Entered in the office of the Clerk of the within named
Court on 20.

NOTICE
OF
SETTLEMENT



That an Order of which the within is a true copy will be
Presented to the Hon. , one of the
judges of the within named Court, at ,
, New York , on 20,

Dated:

TALKIN, MUCCIGROSSO & ROBERTS, L.L.P.
Attorneys for Plaintiff
40 Exchange Place, Suite 1800
New York, New York 10005